

CV-25-006057 MORALES, RENE BERMUDEZ vs VARGAS, MACHUCA EMILIANO – Plaintiff's Motion for Service by Publication - DENIED without prejudice.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The declaration is insufficient to determine if other addresses are associated with individual defendants. It asserts that the subject address is "the only address associated with all three defendants," but this does not indicate that other addresses are associated with individual defendants and also does not indicate that other addresses were sought. Plaintiffs have not established that they conducted an appropriate search for Defendants' whereabouts or addresses. Reasonable diligence "denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney," such as a number of attempts to learn defendant's whereabouts or address by inquiry and/or investigation of public directories. (Board of Trustees of Leland Stanford Junior University v. Ham (2013) 216 Cal.App.4th 330, 338.) Due diligence in attempting to serve at the address listed is shown, but the evidence before the Court does not indicate that there are not other known addresses for the defendants, nor what the reasoning behind the conclusion that the defendants reside at the address is. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 2c9f9443539afca3d0fe686972e89eaae7ac738ba14a16e9f0c6d063554b1ca9

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